

SpaceLoop Master Platform Terms of Service

Standard Peer-to-Peer Temporary Space Use License Agreement & Operations Protocol

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IMPORTANT LEGAL NOTICE — BINDING TEMPORARY LICENSE (NOT A TENANCY):

By creating an account, publishing a space listing, booking a room, or accessing any SpaceLoop premises, you unconditionally agree to be bound by these Terms. **Access granted through SpaceLoop constitutes a temporary, revocable license under Section 52 of the Indian Easements Act, 1882. It does NOT create any tenancy, leasehold estate, or possessory rights under the Transfer of Property Act, 1882 or state rent control legislation.**

1. Preamble & Nature of SpaceLoop Platform

1.1 Platform Role: SpaceLoop Technologies ("SpaceLoop", "we", "us", or "our") operates an online peer-to-peer technology marketplace facilitating the discovery, booking, physical dual-handshake access, and condition-based micro-escrow clearance for underutilized physical spaces ("Spaces"). SpaceLoop acts strictly as a technology intermediary as defined under Section 2(1)(w) of the Information Technology Act, 2000, and claims safe harbor protections under Section 79 thereof.

1.2 Independent Contracting Parties: SpaceLoop is not a real estate broker, leasing agent, insurer, property manager, or bailee. Hosts are independent custodians or owners of the spaces listed. Seekers ("Guests") contract directly with Hosts under the automated Micro-Lease License Agreement synthesized by the platform.

2. Definitional Framework

- **Host:** The verified legal owner or authorized custodian listing a physical space on SpaceLoop.
- **Seeker / Guest:** The verified registered individual or organizational representative reserving a Space.
- **Micro-Lease:** The algorithmic plain-language Temporary Space Use License Agreement generated for each booking.
- **Micro-Escrow:** The mandatory █100 refundable financial security deposit held in trust during active reservations.
- **Dual-Handshake:** The cryptographic physical access validation requiring 50m GPS Geofence + Dynamic QR / PIN.
- **OTI Index:** The Objective Telemetry Index (0–100%) tracking punctuality, room condition, and verified KYC compliance.

3. Grant of Revocable License (Absolute Exclusion of Tenancy)

3.1 Nature of Grant: The Host grants to the Seeker a limited, revocable, non-exclusive, non-transferable license to enter and occupy the designated Space solely for the permitted activity, duration, and maximum attendee capacity specified in the Booking confirmation.

3.2 Exclusion of Tenancy & Sublicensing: The Seeker acknowledges and agrees that: (a) this Agreement does not create any tenancy, leasehold interest, or statutory occupancy rights; (b) the Seeker acquires no right to quiet enjoyment or exclusive possession beyond the authorized hours; (c) the Seeker shall not assign, sublet, or grant secondary licenses to any third party; and (d) upon expiration or termination of the booking duration, the Seeker shall immediately vacate the premise.

3.3 Revocation & Summary Eviction: The Host or SpaceLoop reserves the right to immediately revoke the license and require immediate departure if the Seeker: exceeds capacity limits, causes nuisance or noise > 75 dB, engages in unlawful conduct, or refuses electrical appliance shut-down upon check-out.

4. Identity Verification, KYC & Data Protection (DPDP Act 2023)

- 4.1 DigiLocker Aadhaar e-KYC:** To protect community safety, all Seekers must complete tokenized Aadhaar identity verification. In strict compliance with Section 8 of the Digital Personal Data Protection Act, 2023 (DPDP Act), **SpaceLoop never stores raw 12-digit Aadhaar numbers**. Credentials are authenticated via DigiLocker OTP, converted into a one-way salted SHA-256 token hash, and displayed solely in masked format (XXXX-XXXX-4821).
- 4.2 Academic Verification:** Student and researcher subsidies require validation via institutional domain email (.ac.in or .edu.in) and masked student identification. Subsidized bookings are strictly non-transferable to non-student third parties.
- 4.3 Host Premise Proof:** Hosts must verify physical premise custody by submitting an active state electricity distribution company (Discom) Consumer Account (CA) number and completing a verified **1** UPI Penny Drop bank match.

5. Financial Terms, Pricing & Micro-Escrow Protocol

FINANCIAL COMPONENT	RATE / VALUE	OPERATIONAL RULES & REFUND POLICY
Space Hourly Subtotal	10 – 5,000 / hr	Determined by Host with dynamic AI pricing recommendations.
Platform Service Fee	5.0% of Rental	Retained by SpaceLoop to cover infrastructure, KYC, and security.
Security Micro-Escrow	100.00 Fixed	Locked in platform escrow; automatically released upon cleared exit scan.
Overstay Surcharge	150% Prorated Rate	Applied automatically if checkout occurs > 15 minutes past end time.

- 5.1 Automated Micro-Escrow Hold:** Every reservation requires a **100** UPI Micro-Escrow deposit. This deposit is held in an authorized escrow pool and acts as real-time damage mitigation and electrical shut-off security.
- 5.2 Instant Escrow Release:** Upon departure, if the AI Computer Vision room delta confirms condition match $\geq 90\%$ and affirmative electrical appliance shut-off, the **100** deposit is instantly released via UPI payout rails.

6. Physical Access Handshake & Premise Rules

- 6.1 Dual-Handshake Check-In:** Physical access requires satisfying two cryptographic checks: (1) Device GPS coordinates must resolve within a 50-meter Haversine radius of the property; and (2) The Seeker must scan the host's dynamic Room QR Code or enter the rotating 4-digit Caretaker PIN. Remote or spoofed check-in attempts trigger immediate security cancellation.
- 6.2 Permitted Use & Activity Constraints:** Spaces may only be used for legal activities explicitly stated during booking (e.g., creative production, study, quiet coworking). Commercial hazardous manufacturing, explosive materials, narcotics, open flames, or amplified sound exceeding municipal decibel thresholds are strictly prohibited.
- 6.3 Maximum Occupancy Limit:** The Seeker warrants that attendees shall never exceed `space.max\_capacity`. Violations result in immediate license revocation without refund and forfeiture of the **100** escrow deposit.

7. Check-Out Protocol & Computer Vision Room Delta Audit

- 7.1 Departure Condition Audit:** Seekers must submit an authentic wide-angle exit photograph before leaving. Our Computer Vision inspection model evaluates furniture restoration, debris removal, and appliance power status.
- 7.2 Mandatory Electrical Appliance Off-Switch:** Air conditioners, studio lights, high-draw amplifiers, and fans must be powered off. Leaving appliances running flags a non-conformance event, holding the escrow deposit for utility reconciliation.
- 7.3 Damage Liability:** If physical damage exceeds **100**, the Host may submit visual evidence within 24 hours. The Seeker agrees to reimburse the Host for documented repair or replacement costs up to the actual damages assessed.

8. Cancellation & Refund Policy

- **Seeker Cancellation > 2 Hours Before Start:** 100% rental subtotal & **100** escrow refunded; 5% platform fee retained.
- **Seeker Cancellation < 2 Hours Before Start:** 50% rental fee paid to Host for booking freeze; 100% escrow refunded.
- **Host Cancellation (Any Time):** 100% total refund to Seeker + **150** platform credit; Host OTI penalty applied.
- **Premise Utility Outage (Discom flag):** Immediate 100% full refund including platform fees with alternative room rebooking.

9. Objective Telemetry Index (OTI) & Reputation Integrity

SpaceLoop rejects biased, retaliatory star reviews. User trust is calculated mathematically from verified telemetry: **OTI = (35% Punctuality) + (35% Cleanliness Match) + (20% KYC Status) + (10% Zero-Dispute Record)**. Users whose OTI drops below 70% face temporary booking restrictions or suspension.

10. Limitation of Liability & Disclaimers

- 10.1 "As-Is" Marketplace: To the maximum extent permitted under applicable Indian law, SpaceLoop disclaims all warranties regarding space suitability, structural safety, third-party conduct, or utility disruptions. Hosts and Seekers transact at their own risk.
- 10.2 Liability Cap: Under no circumstances shall SpaceLoop's cumulative liability arising out of any booking exceed **the platform service fees actually earned by SpaceLoop on that specific transaction (typically 5%)**.

11. Governing Law & Dispute Arbitration

- 11.1 Governing Law: These Terms shall be construed and governed in accordance with the substantive laws of India.
- 11.2 Mandatory Two-Tier Dispute Resolution: Any dispute between Host, Seeker, or SpaceLoop shall first be submitted to SpaceLoop's online conciliation portal for 14 business days. If unresolved, disputes shall be finally referred to binding arbitration administered in New Delhi, India, in accordance with the **Arbitration and Conciliation Act, 1996**. The language of arbitration shall be English.

12. Digital Signature & Statutory Acknowledgment

By checking "*I accept the SpaceLoop Platform Terms & Revocable License Agreement*" during registration, listing a space, or confirming a booking reservation, you execute a legally valid electronic record under Section 10A of the Information Technology Act, 2000, and confirm your consent to all provisions herein.

FOR HOSTS (LICENSOR)	FOR SEEKERS (LICENSEE)	FOR SPACELOOP TECHNOLOGIES
Consent executed upon space publishing. Premise verified via Discom CA meter. UPI penny drop beneficiary confirmed.	Consent executed upon reservation. Identity verified via DigiLocker token. Micro-escrow condition accepted.	Platform Terms Enforced. Intermediary Safe Harbor Active. Digital Certificate: #SL-2026-AUTH